

# Smt Kalavathi @ Tulsi vs Sri M Raghavendra on 7 February, 2011

**Bench: K.L.Manjunath, H.G.Ramesh**

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE  
DATED THIS 32<sup>nd</sup> DAY 03 FEBRUARY, 2011  
PRESENT : V 2 .  
THE HON'BLE MR. JUSTICE K.J. Somayaiah  
ASE \_ KVJV , \_ , ,  
THE HON'BLE MR. Justice K.J. Somayaiah  
MISC. FIRST APPEAL:NDGI/C3/2011 (SC)

BETWEEN:

Kalavathi @.Tulsi & /s/ Raghavendra,  
44 years, DOB: 4/1/1947, CRQSS: JV V  
E--Street; 'Jai Bharath' Agarkar=  
Bangalore"33uiy A fl E APPELLANT

(By: Advocate Sri R. S. Raghavendra)  
AND:

M. Raghavendra: o Mallaiah,  
'=, 57. ysa; s, , No. 14a9; '6" 'cross,  
'cf Blck, \*: Stage,

, Marlyappanapalya,

Bangalore, »~ .. RESPONDENT  
{By, 3dvate Sri. T. Raghavendra}

'a This MFA is filed under Sec.19(1) of FC Act

»\_ against the judgment and decree dated 2'4.2008  
V uged in M.€Na.1869/2985 on the file of the Prl,  
~, Judge, Family court, Bangalore, allowing the

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petition filed under Sec.13(l)(ia)(ib) of Hindu  
Marriage Act seeking relief of divorce.

This Appeal is coming on for final hearing  
this day, MANJUNATH J. delivered the following

# J U D G M E N T

Parties have settled their dispute, and they have filed a joint memo with the appellant as well as the respondent's respective advocates. This is referred by the appellant. The decree of divorce granted "by the Principal Judge, Family Court at Bangalore in M. C. 1869/2005.

2. After arguing the matter, parties have filed "a joint memo stating that judgment and decree of divorce" is hereby set aside since respondent has agreed to give one residential house site No.16 in Sy.No.123/1, Ward \*: 9g Byraveshwaranagar and Katha bearing Eo.3, VV\_ "Ili Cress, Laggere, Bangalore 58 measuring eastward 36' and northward 43' which consists of two <\*> portions of the building and he has agreed. to execute the gift deed towards permanent alimony of the appellant and her son Frajwal and that the appellant has agreed, to receive the share of the property towards permanent alimony of her and her son and the respondent has agreed to execute the gift deed within 8 months from today at his residence that he would hand over" vacant possession to the appellant and her son at the time of execution of the gift deed; it

3. In view of the settlement arrived at, this appeal is disposed of in terms of the joint memo and that C. 1869/2009 shall also be withdrawn and the appealant herein.

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